

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.4472 of 2009.

In the matter of:

An application under section
115(1) of the Code of Civil
Procedure.

And

Md. Abdus Salam Mondal and
others

...Petitioners

-Versus-

Most. Jesmin Ara Begum and
others

...opposite parties

No one appears

...For the petitioners

Mr. Mrinal Kanti Biswas,
Advocate

**...For the opposite party No.1 &
2.**

Heard & Judgment on 02.09.2024.

This Rule was issued calling upon the opposite party Nos.1-2 to show cause as to why the impugned judgment and decree complained of in the petition moved in Court today should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that opposite party No.1 as constituted attorney of his two daughters namely Most. Jesmin Ara Begum and Most. Hosneara Begum instituted above suit for Specific

Performance of Contract dated 05.02.1996 executed by petitioner defendant Abdus Salam Mondal for sale of disputed 60 decimal land for a consideration of Tk.75,000/- (seventy five thousand).

It was alleged that above defendant is his nephew who was in need of money for going abroad and he wanted to sale the disputed land and her two daughters entrusted him to purchase above land for them. Above defendant Abdus Salam came to his home and on receipt of total Tk.75,000/- executed a deed on 05.02.1996 but he subsequently refused to execute and register a kobla deed.

Defendant No.1 contested the suit by filing a written statement alleging that the plaintiff was the brother of his father and since he was in need of money he went to the defendant for loan of Tk.20,000/-. He gave above loan on obtaining his signatures on blank stamp paper on 11.02.1996. He has returned above loan money to the defendant on 17.02.1996 but the defendant did not return above signed blank stamp papers. The defendant has transferred above land to his sons defendant Nos.2-5 by a registered heba-bil-ewaj on 08.02.1996.

At trial plaintiff examined two witnesses and defendant examined four. Documents produced and proved by the plaintiff were marked as Exhibit No.1-9 and those of the defendant were marked as Exhibit No.Ka.

On consideration of facts and circumstances of the case and evidence on record the learned Senior Assistant Judge dismissed the suit.

Being aggrieved by above judgment and decree of the learned Senior Assistant Judge plaintiff preferred Other Class Appeal No.265 of 2002 to the District Judge, Borga which was heard by the learned Special Judge, Borga who allowed above appeal and set aside the judgment and decree of the trial court and decree above suit.

Being aggrieved by above judgment and decree of the court of appeal below defendant Nos.1-5 as petitioners moved to this court with this petition and obtained this rule.

No one appears on behalf of the petitioners at the time of hearing of this petition.

Mr. Mrinal Kanti Biswas learned Advocate for the opposite parties submits that the defendant has admitted while giving evidence as D.W.1 that he received Tk.20,000/- from the plaintiff and gave signatures on blank stamp papers. The

defendant has claimed to have returned above loan money he could not prove the same by legal evidence. Undisputedly plaintiff was the brother of the father of defendant No.1. To avoid above lawful transaction of sale of the disputed land the defendant has created a forged heba bil ewaj deed showing the registration of the same in Adamdighi Sub-registry office although no land within the jurisdiction of above Adamdighi Sub-registry office was incorporated in that deed. The learned Judge of trial court found that the plaintiff succeeded to prove above contract of sale of the disputed land by the defendant No.1 but dismissed the suit on erroneous perception that the plaintiff should have filed a suit under section 77 of the Registration Act. The learned Judge of the court of appeal below on correct appreciation of evidence on record and relevant laws has rightly allowed the appeal and decreed the suit which calls for no interference.

I have considered the submissions of the learned Advocate for the opposite parties and carefully examined all materials on record.

It is admitted that disputed 60 decimal land belonged to defendant No.1 who is the son of the deceased brother of the plaintiff.

The plaintiff gave evidence as P.W.1 and stated that the defendant agreed to sale above land for a consideration of Tk.75,000/- and on receipt of above money from him executed a deed on 05.02.1996.

The scribe of above deed (Exhibit No.1) has given evidence as P.W.2 and in his evidence he has corroborated P.W.1 in respect of receipt of consideration money by defendant No.1 for disputed land and execution of an unregistered deed. Above two P.Ws. were extensively cross examined by the defendant but their evidence remained mutually corroborative, consistent and credence inspiring.

Defendant No.1 has given evidence as D.W.1 admitted that he received money from the plaintiff but the amount was Tk.20,000/- not Tk. 75,000/- and that money he received as a loan. But the defendant has admitted that at the time of receipt of above loan he gave signatures on blank stamp papers.

Above evidence is an admission of the defendant as to his signatures on the impugned unregistered document of sale (Exhibit No.1).

D.W.1 has claimed to have returned above loan money of Tk.20,000/- to the plaintiff but he

could not adduce any legal evidence oral and documentary to substantiate above claim.

On consideration of above facts and circumstances of the case and evidence on record the learned Judges of both the courts below concurrently held that defendant NO.1 obtained Tk.75,000/- as consideration for sale of disputed of 60 decimal land to the plaintiff and he executed an registered deed (Exhibit No.1).

The learned Judge of the trial court dismissed the suit on an erroneous perception that instead of filing the instant suit for Specific Performance of Contract the plaintiff should have first sought relief under section 32 of the Registration Act.

The learned District Judge correctly appreciated above legal position and rightly held that there was no legal bar for the plaintiff to directly come to the civil court and file the instant suit for Specific Performance of Contract.

The concurrent findings of facts arrived at the by both the courts below as to proper execution of Exhibit No.1 by defendant No.1 and receipt of Tk.75,000/- as consideration of the disputed land is based on legal evidence on

record. There is no allegation of non consideration or misinterpretation of any legal evidence on record. As such this court cannot interfere with above concurrent findings of facts arrived at by the courts below in its revisional jurisdiction under section 115 of the Code of Civil Procedure.

In above view of the materials on record I am unable to find any substance in this petition and the rule issued in this connection is liable to be discharged.

In the result, the Rule is discharged without any order as to costs.

Let the lower Court's record along with a copy of this judgment be transmitted down to the Court concerned at once.